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Westminster Public Schools
Request for Proposal (RFP)

Summer 2027 Facility Improvements – Multiple Locations

Request for Proposal No. 26-002
Date of Issue: October 13, 2026
Proposal Closing Date: December 1, 2026, at 2:00 p.m. Mountain Prevailing Time (MPT)

To be considered, all responses must be submitted via the Rocky Mountain E-Purchasing System prior to the proposal closing date and time listed above. Late submissions will not be accepted.

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Note: Attachments E, F, and G are provided as separate files with this solicitation through the Rocky Mountain E-Purchasing System and are incorporated into and made part of this solicitation.

Definitions

The following glossary defines abbreviations, acronyms, and terms used throughout this RFP for ease of reference.

Term	Definition
Agreement	The collective contractual agreement between the District and the Contractor consisting of the documents identified in Section 6: District Terms and Conditions.
Alternate	A defined portion of the Work for which separate pricing is requested and which may be accepted or rejected by the District in addition to or in lieu of other Work, as identified in the solicitation and Pricing Proposal.
Contractor	The Respondent to whom an award is made and with whom the District establishes an Agreement.
District	Westminster Public Schools.
Project Package	A separately identified portion of the Work associated with a specific District facility or project location and designated for separate proposal, evaluation, pricing, and potential award under this solicitation.
Respondent	An individual, firm, company, corporation, or other entity that submits a response to this solicitation.
Response	The written offer submitted by a Respondent in response to this solicitation, including all required information, forms, certifications, pricing, and other materials.
Request for Proposal (RFP)	A competitive solicitation process used by the District to evaluate and select a Respondent based upon established criteria, which may include qualifications, experience, approach, price, products, services, and overall value.
Work	The products, services, labor, materials, deliverables, and other obligations required to be provided or performed under the Agreement.

Section 1: Introduction and Overview

District Profile
Westminster Public Schools is a Colorado public school district serving students and families throughout portions of Adams County in the Denver metropolitan area. The District covers a geographical area of 17.5 square miles and serves the communities of Westminster, Arvada, Denver, and Federal Heights, along with certain unincorporated areas of Adams County. The District consists of 17 schools serving approximately 7,500 students and employs approximately 900 staff members. Westminster Public Schools is recognized for its innovative approach to personalized learning and operates the largest districtwide Competency Based System in the nation.

Purpose
Westminster Public Schools (the District) is soliciting proposals from qualified general contractors to provide construction services for the District's Summer 2027 Facility Improvements at multiple school locations. The Work generally consists of renovation, repair, replacement, and facility improvement projects and includes, as applicable, electrical improvements; classroom casework and associated plumbing; flooring replacement; window replacement; lighting improvements; Voice Lift and technology-related improvements; waterproofing and exterior improvements; classroom modifications; drinking fountain replacement; masonry improvements; and other associated construction Work as shown and specified in the applicable Contract Documents.

The Work is divided into six (6) separate Project Packages by school/location. Respondents may submit proposals for one (1), multiple, or all Project Packages in accordance with the requirements of this solicitation. The Work shall be performed in accordance with the Drawings, Specifications, WPS General Conditions of the Construction Agreement, addenda, and other Contract Documents applicable to each Project Package. Certain additional design information, including Civil documents for identified Project Packages, is anticipated to be issued by addendum during the solicitation period as further described in Section 3.

Project Packages
The Work is organized into the following Project Packages:

Package A
International School at Harris Park Renovations
4300 W. 75th Avenue, Westminster, CO 80030

Package B
Sherrelwood Elementary Renovations
8095 Kalamath Street, Denver, CO 80221

Package C
Early Learning Center at Gregory Hill Renovations
8030 Irving Street, Westminster, CO 80031

Package D
Hodgkins Leadership Academy Flooring Improvements
3475 W. 67th Avenue, Denver, CO 80221

Package E
Fairview PK-8 Renovations
7826 Fairview Avenue, Denver, CO 80221

Package F
Tennyson Knolls Preparatory School Renovations
6330 Tennyson Street, Arvada, CO 80003

Project Package Proposal and Award Structure
Respondents may submit a proposal for any one (1), multiple, or all Project Packages. A Respondent is not required to submit a proposal for every Project Package in order to be considered for award. Each Project Package shall be separately priced and may be separately evaluated and awarded. When a Respondent proposes on multiple Project Packages, the District may additionally evaluate the Respondent's demonstrated staffing, resources, capacity, scheduling, and ability to successfully perform the proposed Project Packages concurrently.

The District reserves the right to award any Project Package individually or to award multiple Project Packages to the same Respondent; make awards to one or multiple Respondents; accept or reject any Alternate; and determine the award or combination of awards determined to be the most advantageous to the District based upon the evaluation criteria established in this solicitation.

Award of one Project Package shall not entitle a Respondent to award of any other Project Package. The District is under no obligation to award all Project Packages included in this solicitation.

Contingent Project Package – Fairview PK-8
Package E – Fairview PK-8 is included in this solicitation for competitive pricing and evaluation purposes; however, the District has not made a final determination to proceed with this Project Package. Any award of Package E is contingent upon availability of funding, required District approvals, and the District's determination to authorize the Work. The District reserves the right to award or decline to award Package E independently of the other Project Packages. No Respondent shall be entitled to compensation or reimbursement of proposal costs if the District elects not to proceed with Package E. If the District has not authorized an award of Package E within the established proposal validity period, the District may request a written extension of the applicable proposal and pricing validity, subject to the Respondent's agreement and applicable procurement requirements.

Request for Proposal (RFP) General Information
This RFP is a competitive solicitation through which the District will evaluate responses in accordance with the criteria established herein. Issuance of this RFP does not obligate the District to make an award, purchase any products or services, or enter into an Agreement. Any award resulting from this solicitation shall be made in accordance with Section 5: Evaluation of Responses and Section 6: District Terms and Conditions.

Section 2: Communication and Timeline

Solicitation Contact and Communication
To promote a fair, open, and competitive solicitation process, all communications concerning this solicitation must be directed to:

Kristen Hernandez
Logistics Coordinator
Westminster Public Schools
Email: khernandez@wps.org

The above-named individual shall serve as the District's authorized Solicitation Contact and sole point of contact for this solicitation unless the District provides written notice identifying another authorized representative. The following communication requirements apply from the date the solicitation is issued through completion of the solicitation process:

- Respondents shall not contact District employees, Board of Education members, consultants, or other representatives regarding this solicitation, except through the Solicitation Contact.
- All questions, requests for clarification, and inquiries regarding the solicitation documents must be submitted via the Rocky Mountain E-Purchasing System by the deadline specified in the solicitation. Questions submitted by email, telephone, in person, or through any other method will not be accepted or considered.
- Each question or request for clarification must be submitted as a separate entry in the Rocky Mountain E-Purchasing System. Respondents shall submit only one question per entry and should identify the applicable section, page, specification, or attachment to which the question relates. Entries containing more than one question will not be considered or answered. Respondents are responsible for resubmitting each question as a separate entry prior to the established question deadline. Questions not properly submitted by the deadline will not be considered.
- If a Respondent is contacted by a District employee, consultant, or other representative regarding the solicitation, the Respondent should refer the individual to the Solicitation Contact for appropriate coordination.
- Respondents shall not rely upon oral statements, interpretations, explanations, or other representations concerning the requirements, specifications, terms, or conditions of this solicitation. Only information issued or confirmed in writing by an authorized District representative shall be considered official.
- Any attempt to obtain information regarding the solicitation outside the authorized communication process, influence the evaluation or award process, or engage in unauthorized communication may result in disqualification of the Respondent or rejection of its response when determined appropriate by the District.
- Any modification, clarification, correction, or amendment to this solicitation shall be valid only when issued in writing by the District's Logistics Coordinator, Solicitation Contact, or designee.

Schedule of Activities and Timeline

Activity	Description	Date & Time
Issue Solicitation	Issuance of the solicitation via the Rocky Mountain E-Purchasing System.	10/13/26
Pre-Proposal Walk-Through	The District will conduct a **mandatory** pre-proposal site walk-through beginning at **Sherrelwood Elementary, 8095 Kalamath Street, Denver, CO 80221.** The walk-through will proceed to the remaining Project locations in the order established by the District. Respondents are responsible for providing their own transportation between locations. **Respondents must RSVP by email to the District's Solicitation Contact no later than October 16, 2026.** Respondents must attend the mandatory walk-through beginning at the designated starting location and time. Attendance at each applicable Project location is required for consideration of that Project Package. Late arrivals will not be permitted to join the walk-through, and responses from Respondents who fail to attend the required opening will not be accepted. All Respondents shall sign in at the designated starting location. Respondents may depart after attending the Project locations for which they intend to submit a proposal; however, each Respondent is responsible for signing out upon departure and identifying the last Project location attended. The District will maintain attendance records to determine eligibility to submit a proposal for each Project Package. Failure to attend the required opening or an applicable Project location may result in rejection of the proposal for the affected Project Package(s).	10/19/26 at 2:00 pm Mountain Prevailing Time (MPT)
Anticipated Civil/ Design Addendum	The District currently anticipates that additional Civil drawings for Package A – International School at Harris Park and Package C – Early Learning Center at Gregory Hill will be issued during the solicitation period following completion of pending survey, geotechnical/soils, and related engineering information.	Anticipated November 2026 (Date TBD)
Questions	Respondents may submit questions concerning this solicitation via the Rocky Mountain E-Purchasing System. Questions submitted after the established deadline will not be considered, except during any supplemental question period expressly authorized by the District in accordance with Section 3.9.	11/5/26 by 5:00 pm Mountain Prevailing Time (MPT)
Answers	Responses to questions received by the established question deadline will be issued by addendum through the Rocky Mountain E-Purchasing System. Additional addenda, including forthcoming Civil documents and any supplemental questions and responses, may be issued separately in accordance with Section 3.9.	11/12/26 by 5:00 pm Mountain Prevailing Time (MPT)
Proposal Submission Deadline	The District will receive responses via the Rocky Mountain E-Purchasing System until the deadline date and time indicated. See Section 4: Response Requirements. Late responses will **not** be accepted.	12/1/26 by 2:00 pm Mountain Prevailing Time (MPT)
Interviews	Interviews with shortlisted Respondents selected through the initial evaluation process.	12/10/26
Evaluation	Final evaluation of responses and interviews by the Evaluation Committee.	December 2026
Board of Education Approval (if applicable)	Recommendation for award presented to the Board of Education for approval, when required.	January 2027
Award	Notice of Award issued to the successful Respondent.	January 2027
Purchase Order	Issuance of an authorized District Purchase Order as part of the Agreement and authorization to proceed with the awarded Work.	January 2027

Project Schedule

The Work is required to be performed during the District's summer 2027 construction period. The District anticipates on-site construction beginning on or about May 28, 2027, subject to coordination of building access, furniture and equipment relocation, District-provided abatement, and other preconstruction and site-readiness activities.

All awarded Project Packages shall achieve Substantial Completion no later than July 23, 2027, unless otherwise modified in writing by the District. For purposes of this Project, the July 23, 2027 Substantial Completion date is intended to provide the District sufficient time to begin returning furniture, equipment, instructional materials, and other District property to the buildings and preparing the facilities for the 2027-2028 school year.

The precise commencement date and sequencing of Work may vary by Project Package based upon building availability, furniture relocation, regulated-material abatement, existing conditions, and coordination with District operations and separate contractors. Detailed sequencing will be developed with the awarded Contractor following award.

Respondents shall plan procurement, submittals, fabrication, mobilization, construction, inspections, testing, final cleaning, punch-list activities, and closeout to achieve the required completion dates. Respondents shall identify anticipated long-lead materials and equipment and describe the actions proposed to ensure timely procurement. Respondents proposing on multiple Project Packages shall demonstrate their ability to concurrently perform the proposed Work and shall identify the personnel, subcontractors, supervision, equipment, and other resources proposed for each location.

Activity	Description	Date
Project Kickoff	Following award, Board of Education approval when required, and issuance of an authorized District Purchase Order or other written authorization by the District.	January 2027
Order Materials	Contractor shall promptly initiate required submittals and procurement of materials and equipment following authorization to proceed, consistent with the approved project schedule.	January 2027
Site Work	Anticipated on-site construction start date in accordance with the Contract Documents and approved project schedule.	May 28, 2027
Substantial Completion	Work shall achieve Substantial Completion in accordance with the Contract Documents.	July 23, 2027
Final Completion	Completion of all remaining Work, punch-list items, closeout requirements, and other requirements for Final Completion.	July 23, 2027

Section 3: Scope of Work

Scope of Work

3.1 General Scope

The Contractor shall furnish all labor, supervision, materials, equipment, tools, transportation, temporary facilities, permits, coordination, testing, cleaning, closeout documentation, and other services necessary to complete the awarded Work in accordance with the Contract Documents. The descriptions contained in this Section provide a general summary of the Work and are not intended to replace, limit, or supersede the Drawings, Specifications, General Conditions, addenda, or other Contract Documents. Respondents are responsible for reviewing the complete Contract Documents applicable to each Project Package for which they submit a proposal.

3.2 Package A – International School at Harris Park

The Work at International School at Harris Park generally includes:

- Exterior brick staining, including necessary surface cleaning, preparation, and application of masonry stain to the building's exterior brick surfaces.
- Removal and replacement of existing classroom electrical panels in the main building as shown and specified.
- Replacement of classroom casework along windows and hallways, including associated sinks, faucets, bubblers, shelving, teacher storage/closets, and related improvements as shown and specified.
- Installation of power and associated infrastructure for Voice Lift systems in classrooms.
- Replacement of exterior windows as shown and specified.
- Removal and replacement of designated flooring, including removal of existing VCT and installation of LVT and/or polished concrete in identified areas.
- Associated demolition, electrical, plumbing, finishes, patching, restoration, testing, coordination, and other Work required by the Contract Documents.
- Civil/site Work to be further identified by addendum as described herein.

3.3 Package B – Sherrelwood Elementary

The Work at Sherrelwood Elementary generally includes:

- Replacement of exterior windows as shown and specified.
- Replacement of classroom casework and associated sinks, faucets, bubblers, shelving, teacher storage, and related improvements as shown and specified.
- Installation of power and associated infrastructure for classroom Voice Lift systems.
- Electrical, technology, intercom, classroom monitor, and associated improvements as shown and specified.
- Exterior brick staining, including necessary surface cleaning, preparation, and application of masonry stain to the building's exterior brick surfaces.
- Associated demolition, plumbing, electrical, patching, restoration, finishes, testing, coordination, and other Work required by the Contract Documents.

3.4 Package C – Early Learning Center at Gregory Hill

The Work at the Early Learning Center at Gregory Hill generally includes:

- Exterior brick staining, including necessary surface cleaning, preparation, and application of masonry stain to the building's exterior brick surfaces.
- Gymnasium wall waterproofing and associated exterior improvements.
- Demolition, masonry, waterproofing, drainage, restoration, finishes, and other Work shown and specified.
- Associated structural, plumbing, site, and coordination Work required by the Contract Documents.
- Civil/site Work to be further identified by addendum as described herein.

Facility Name Clarification: The Early Learning Center at Gregory Hill was formerly identified as the Early Childhood Center (ECC). Certain Drawings, Specifications, and other technical documents issued by the Design Professional may reference the facility by its former name. For purposes of this solicitation, references to the Early Childhood Center (ECC) in the applicable Contract Documents shall be understood to refer to the Early Learning Center at Gregory Hill, identified as Package C herein.

3.5 Package D – Hodgkins Leadership Academy

The Work at Hodgkins Leadership Academy generally consists of flooring replacement and associated improvements as identified in the applicable Drawings and Specifications, including:

- Removal and replacement of designated existing VCT and other flooring materials.
- Removal and reinstallation or replacement of existing casework, where expressly required to complete the flooring Work.
- Associated demolition, floor preparation, transitions, base, patching, restoration, finishes, cleaning, and other Work necessary to complete the designated flooring improvements.

The Contractor's scope under this Project Package is limited to flooring replacement and associated Work necessary to complete the flooring improvements. Although the Drawings and Specifications may depict additional classroom-conversion or renovation improvements, such Work is excluded from this solicitation unless expressly identified as part of the flooring scope.

Respondents shall include only those materials, labor, demolition, preparation, restoration, and related activities reasonably necessary to complete the designated flooring improvements. Work unrelated to the flooring improvements, including construction of new classroom walls and associated modifications, shall not be included in the Base Proposal.

Any questions regarding the applicability of specific drawings, details, or specifications to the flooring scope shall be submitted through the solicitation's established question-and-answer process for clarification by the District.

3.6 Package E – Fairview PK-8

The Work at Fairview PK-8 generally includes:

- Exterior brick staining, including necessary surface cleaning, preparation, and application of masonry stain to the building's exterior brick surfaces.
- Replacement of classroom casework and associated sinks, faucets, bubblers, shelving, teacher storage/closets, and related improvements as shown and specified.
- Flooring replacement in classrooms and other identified areas.
- Replacement of exterior windows as shown and specified.

- Associated demolition, plumbing, electrical, finishes, patching, restoration, testing, coordination, and other Work required by the Contract Documents.

Contingent Work: The Work described under Package E is contingent upon District authorization. Respondents shall provide firm pricing for the complete scope identified in the applicable Contract Documents. Inclusion of Package E in this solicitation does not constitute a commitment by the District to award or proceed with the Work. Any award and authorization to proceed shall be subject to the conditions established in Section 1 and the District's applicable contracting requirements.

3.7 Package F – Tennyson Knolls Preparatory School

The Work at Tennyson Knolls Preparatory School generally includes:

- Replacement of existing classroom casework as shown and specified.
- Installation of power and associated infrastructure for Voice Lift systems, where not previously completed.
- Electrical and technology modifications associated with the remaining classroom casework and related improvements.
- Exterior brick staining, including necessary surface cleaning, preparation, and application of masonry stain to the building's exterior brick surfaces.
- Associated demolition, plumbing, electrical, patching, restoration, finishes, testing, coordination, and other Work necessary to complete the remaining improvements identified in the applicable Contract Documents.

Scope Exclusions: Replacement of micro-panels, lighting retrofits, and drinking fountains previously completed or separately contracted by the District are excluded from this Project Package. Although these improvements may appear in the Drawings and Specifications, Respondents shall not include the cost of such previously completed or separately contracted Work in their Base Proposal. Respondents shall submit questions concerning the applicability of specific drawings, details, or specifications through the solicitation's established question-and-answer process.

3.8 Drawings and Specifications

Each Project Package is governed by the Drawings and Specifications identified for that Project Package. Respondents shall review the complete applicable Contract Documents before submitting a proposal. Drawings and Specifications applicable to one Project Package shall not establish the scope of another Project Package unless expressly incorporated by reference. Respondents proposing on multiple Project Packages are independently responsible for reviewing the complete Contract Documents applicable to each Project Package.

Exterior brick staining is included in the Base Proposal for Packages A, B, C, E, and F, regardless of whether the Work is specifically identified in the applicable Drawings or Specifications. Respondents shall include all labor, materials, equipment, surface preparation, and related costs necessary to complete the exterior brick staining at each applicable location. Package D – Hodgkins Leadership Academy is excluded from this requirement.

3.9 Forthcoming Civil Documents and Design Revisions

The Drawings and Specifications initially issued with this solicitation represent the Construction Documents available as of the RFP issuance date. The District anticipates issuing additional Civil drawings for Package A – International School at Harris Park and Package C – Early Learning Center at Gregory Hill following completion of pending survey, geotechnical/soils, and related engineering activities. The forthcoming Civil documents may include associated revisions or coordination changes to the currently issued Contract Documents.

Such additional documents will be issued to all Respondents through written addendum and, upon issuance, shall become part of the solicitation and Contract Documents. Respondents are responsible for reviewing all addenda and incorporating subsequently issued Drawings, Specifications, revisions, clarifications, and other requirements into their proposals. Respondents shall not independently estimate or assume the scope of forthcoming Civil Work that is not reasonably established by the solicitation documents.

The District intends to provide Respondents a reasonable period following issuance of any material design addendum to review the revised documents, obtain applicable subcontractor and supplier pricing, and incorporate the requirements into their proposals. If the District determines that the remaining proposal period is insufficient, the Proposal Submission Deadline will be extended by written addendum.

If additional or revised Drawings and Specifications are issued after the established question deadline, the District may establish a supplemental question period limited to the newly issued or revised documents. Any supplemental questions and the District's responses shall be administered through the Rocky Mountain E-Purchasing System.

3.10 Regulated-Material Abatement and Coordination

Regulated-material abatement required in connection with the Work will be performed by a separate contractor retained by the District unless expressly identified otherwise in the Contract Documents. The Contractor shall not include the cost of District-provided abatement in its Contract Sum.

Anticipated abatement may include, as applicable to the Project Package, materials associated with window replacement, existing flooring, pipe insulation, casework removal, and other materials encountered or identified in connection with the Work.

The sequencing of abatement and construction activities has not been predetermined and may vary by Project Package, location, and existing conditions. Following award, the Contractor shall work collaboratively with the District, Design Professional, and District's abatement contractor to develop and maintain an appropriate sequencing and coordination plan for the Work. Depending upon the conditions and requirements of a particular location, abatement may occur before Contractor activities, after initial Contractor demolition or enabling Work, between phases of Contractor Work, or in another sequence approved by the District.

The Contractor shall incorporate District-provided abatement activities and associated access, clearance, sequencing, and coordination requirements into its construction schedule and shall provide reasonable cooperation necessary to facilitate such Work.

The Contractor shall not disturb known or suspected regulated materials except as expressly authorized by the Contract Documents and applicable law. If suspected regulated materials not previously identified are encountered during performance of the Work, the Contractor shall stop Work in the affected area, protect the area from further disturbance, and immediately notify the District in accordance with the Contract Documents. Coordination with District-provided abatement shall be considered part of the Contractor's Work and shall not, by itself, constitute a basis for additional compensation. Nothing herein shall require the Contractor to perform regulated-material abatement identified as District-provided Work.

3.11 Project Coordination and Site Operations

The Contractor shall coordinate all construction activities with the District's Project Manager and Design Professional and shall perform the Work in a manner that protects District property and supports timely reopening of District facilities for the 2027-2028 school year.

Contractor access, staging, deliveries, material storage, temporary facilities, site security, construction fencing, utility interruptions, shutdowns, abatement coordination, and other site logistics shall be coordinated with and subject to approval by the District.

When awarded more than one Project Package, the Contractor shall provide sufficient supervision, staffing, subcontractor capacity, equipment, and other resources to perform the awarded Work concurrently without compromising the required completion date of any Project Package.

3.12 Protection of Existing and Completed Work

The Contractor shall protect existing District property and all existing and newly completed finishes, flooring, casework, fixtures, equipment, and other surfaces from damage resulting from construction activities, personnel, equipment, tools, material movement, deliveries, debris, and other operations associated with the Work. The Contractor shall determine and provide appropriate temporary protection necessary for its means, methods, sequencing, and operations. The District does not require a specific floor-protection product or system unless otherwise identified in the Contract Documents; however, the absence or inadequacy of temporary protection shall not relieve the Contractor of responsibility for damage.

Existing or newly installed flooring and other finished surfaces damaged, scratched, stained, gouged, chipped, broken, or otherwise adversely affected by the Contractor, its Subcontractors, suppliers, employees, equipment, or operations shall be repaired, refinished, or replaced by the Contractor, as appropriate, to restore the affected material to a condition acceptable to the District and Design Professional.

When repair or refinishing will not restore the affected material to an acceptable condition or would result in a visibly inconsistent finish, the Contractor shall replace the damaged material at no additional cost to the District. Required repair or replacement shall be completed promptly and shall not delay Substantial Completion, District furniture and equipment move-in, building setup, or the opening of school.

3.13 Final Cleaning and Turnover

In addition to the cleaning and closeout requirements contained in the applicable Drawings and Specifications, the Contractor shall provide complete final cleaning of all areas affected by the Work at each awarded Project location prior to turnover to the District. Final cleaning shall include

removal of all construction materials, equipment, packaging, rubbish, dust, dirt, debris, residue, labels, temporary protection, and other construction-related materials or markings. Floors, walls, ceilings, doors, frames, windows, casework, cabinets, shelving, countertops, fixtures, equipment, and other exposed surfaces affected by the Work shall be cleaned in accordance with the applicable Contract Documents. Floors shall be thoroughly cleaned using methods appropriate for the applicable flooring material, including vacuuming, HEPA vacuuming, washing, cleaning, polishing, or other treatment as required by the Specifications and manufacturer's requirements.

Upon completion of final cleaning, each affected space shall be left in a clean, dust-free, safe, and fully usable condition suitable for immediate District occupancy, including the return and placement of classroom furniture, equipment, instructional materials, and other District property. Final cleaning shall be coordinated with completion of construction, abatement, and other activities that could generate dust, debris, or contamination. If subsequent Contractor activities contaminate or otherwise adversely affect a previously cleaned area, the Contractor shall re-clean the affected area at no additional cost to the District.

Final cleaning and readiness for District occupancy shall be a condition of Substantial Completion for the applicable Project Package.

3.14 Permits, Inspections, and Regulatory Compliance

The Contractor shall obtain and coordinate all permits, licenses, inspections, utility-provider coordination, and required third-party inspections assigned to the Contractor by the Contract Documents. Certain testing and third-party inspections may be provided by the District or its designated consultant as identified in the Contract Documents. The Contractor shall coordinate and cooperate with all District-provided testing and inspection activities. The Contractor shall perform the Work in accordance with all applicable laws, codes, standards, and District requirements.

3.15 Project Schedule

The Contractor shall plan, schedule, coordinate, and prosecute the Work to achieve the required Substantial Completion and Final Completion dates established in Section 2 and the Contract Documents. Respondents shall submit preliminary construction schedules demonstrating their ability to meet the required dates, including preconstruction activities, submittals, procurement and anticipated lead times, mobilization, major construction activities, coordination with District-provided abatement and other separate contractors, inspections, testing, commissioning, final cleaning, punch-list activities, closeout, and other critical milestones. Respondents shall identify known procurement, manufacturing, labor, scheduling, coordination, or other constraints that could affect completion.

Respondents proposing on multiple Project Packages shall demonstrate how the proposed Work will be performed concurrently.

3.16 Closeout Requirements

As a condition of Final Completion and Final Payment, the Contractor shall provide all closeout documentation required by the Contract Documents, including, as applicable:

- Record/as-built drawings in the formats required by the District and Design Professional;
- Operations and Maintenance manuals;

- Manufacturer, supplier, installer, and workmanship warranties and guarantees;
- Testing, startup, commissioning, and verification reports;
- Final inspection reports and required permits, approvals, and code-compliance documentation;
- Certificate of Substantial Completion and other completion documentation;
- Training documentation and required demonstrations for District personnel;
- Lien waivers, releases, affidavits, and other documentation required for final payment; and
- Additional closeout documentation identified in the applicable Drawings and Specifications.

Final Acceptance will not occur until required closeout documentation has been submitted and accepted in accordance with the Contract Documents.

Section 4: Response Requirements

The purpose of this section is to establish a consistent format for solicitation responses, ensure Respondents provide all required information, and support a fair, efficient, and consistent evaluation of proposals.

Important: Respondents are responsible for complying with all submission and response requirements set forth in this solicitation. Failure to provide required information or follow the prescribed response format and submission instructions may result in a response being deemed non-responsive and may affect whether the response, or portions thereof, are considered in the evaluation.

Submission Instructions
All responses must be submitted through the Rocky Mountain E-Purchasing System at https://www.bidnetdirect.com/colorado/westminster-public-schools. Respondents must obtain and download the solicitation documents through the Rocky Mountain E-Purchasing System to be eligible to submit a response. A response submitted by a Respondent that did not obtain the solicitation documents as required will not be accepted.

Response Requirements
Respondents must submit their response as one (1) complete PDF file, organized in the format specified in this solicitation. The response must include all required documents and information to be considered complete. Embedded files, compressed or ZIP files, links to externally hosted documents, multimedia files, password-protected files, or other files that cannot be readily accessed or reviewed by the District shall not be submitted. Failure to comply with these requirements may result in the response being deemed non-responsive.

Respondents are encouraged to provide clear and concise responses and to include only information relevant to the requirements of this solicitation. Responses must be organized in the following order:

Tab 1 – Cover Letter: Provide a brief cover letter demonstrating the Respondent's understanding of the solicitation requirements and Scope of Work, and describing the Respondent's interest in and ability to successfully perform the required Work. Clearly identify each Project Package for which the Respondent is submitting a proposal. The cover letter must be signed by an individual authorized to bind the Respondent to its response.

Tab 2 – Table of Contents: Provide a table of contents identifying each section of the response by tab and page number, including any attachments or enclosures. All pages must be consecutively numbered and correspond to the table of contents.

Tab 3 – Respondent Qualifications and Experience: Provide an overview of the Respondent's organization, qualifications, and experience relevant to this solicitation. At a minimum, include:

- General description of the organization and services provided.
- Number of years in business and relevant industry experience.
- Principal business location and relevant office locations.

- Relevant experience serving as general contractor for construction projects similar in size, scope, and complexity.
- Experience with K-12 school renovations, public-sector construction, occupied facilities, and projects performed during compressed summer construction periods.
- Experience with the types of Work included in the Project Package(s) proposed.
- Qualifications, capabilities, or other relevant factors that distinguish the Respondent from other contractors.
- Applicable business registrations, certifications, and professional licenses currently held and active in the State of Colorado.
- Identification of key personnel proposed for the project, including their roles, professional qualifications, relevant experience, and applicable certifications or licenses. At a minimum, identify the proposed Project Manager and on-site Superintendent and describe each individual's experience on comparable construction projects.
- Organizational chart identifying key personnel proposed for the project and their respective roles. Include resumes for all key personnel. For Respondents proposing on multiple Project Packages, identify the proposed Project Manager, on-site Superintendent, and key personnel assigned to each location. Identify any personnel proposed to serve multiple Project Packages and explain how sufficient supervision, staffing, and management capacity will be maintained to successfully perform the Work concurrently.
- Identification of major subcontractors anticipated to perform the Work, including the work or trade each subcontractor is expected to perform.
- Identification of the Respondent's primary point of contact for the response and any resulting Agreement, including name, title, telephone number, and email address.
- A letter from the Respondent's surety or authorized bonding agent confirming the Respondent's ability to furnish Performance and Payment Bonds, each in an amount equal to one hundred percent (100%) of the proposed Contract Sum, if awarded the Agreement. The surety must be authorized to conduct business in the State of Colorado. Respondents proposing on multiple Project Packages shall demonstrate sufficient bonding capacity to support the potential award of all Project Packages for which they submit a proposal. The District may consider available bonding capacity when evaluating the Respondent's ability to perform multiple Project Packages concurrently.

Tab 4 – Scope of Work: Respond to each requirement listed in Section 3: Scope of Work in the order presented. At a minimum, the response must:

- Describe how the Respondent will meet each requirement, including the specific services, products, deliverables, or other information to be provided, as applicable.
- Clearly confirm compliance with each requirement and identify any exceptions or proposed alternatives.
- Describe the Respondent's proposed approach to performing each Project Package proposed, including:
    - Construction sequencing and phasing;
    - Mobilization, site logistics, access, staging, deliveries, and material storage;
    - Coordination with the District and Design Professional;
    - Coordination and sequencing with District-provided regulated-material abatement and other separate contractors;
    - Maintaining site safety and security;
    - Coordination of subcontractors and suppliers;

- Procurement and management of long-lead materials and equipment;
- Utility shutdowns and service interruptions;
- Protection of District property;
- Quality control, testing, startup, and commissioning;
- Final cleaning and preparation for District furniture/equipment move-in;
- Punch-list and closeout; and
- Achieving the required Substantial Completion and Final Completion dates.

Respondents proposing on multiple Project Packages shall additionally describe how they will concurrently staff, supervise, schedule, coordinate, and perform the proposed Project Packages without adversely affecting required completion at any location.

Tab 5 – Preliminary Construction Schedule: Provide a preliminary construction schedule for each Project Package proposed. Each schedule shall identify:

- Preconstruction activities;
- Submittals and shop-drawings;
- Procurement and delivery of major equipment and materials, including anticipated long-lead items;
- Mobilization and building access;
- Major construction activities, sequencing, and milestones;
- Anticipated abatement and separate-contractor coordination periods or dependencies, recognizing that final sequencing will be coordinated with the District following award;
- Utility coordination and required inspections;
- Testing and commissioning;
- Final cleaning and preparation for District furniture/equipment move-in;
- Required Substantial Completion;
- Punch-list activities; and
- Final Completion and closeout.

Respondents proposing on multiple Project Packages shall also provide an integrated schedule or other clear explanation demonstrating how the proposed Project Packages will be performed concurrently.

Tab 6 – References: Provide five (5) references for which the Respondent has performed work similar in size and scope to the Work described in this solicitation within the past three (3) years. References from K-12 school districts are preferred. For each reference, provide:

- Organization name.
- Contact name and title.
- Telephone number and email address.
- Date(s) Work was performed.
- Brief description of the Work performed.
- Approximate contract value.
- Identification of any key personnel proposed for this solicitation who also performed work for the referenced organization.

The District reserves the right to contact any and all references provided and to obtain information regarding the Respondent's performance of similar work.

Tab 7 – Pricing: Complete and submit Attachment D – Pricing Proposal for each Package Proposed. Pricing shall be firm and shall include all costs necessary to fully perform the Work in accordance with the Contract Documents.

Each Project Package shall be separately priced, and pricing for one Project Package shall not be conditioned upon award of another Project Package except through an expressly identified Multiple-Package Award discount permitted by Attachment D. Pricing shall remain valid for a minimum of ninety (90) days following the proposal submission deadline. The District is exempt from applicable State of Colorado and local sales and use taxes. Proposed pricing shall not include taxes from which the District is exempt. The District's Colorado tax exemption number is 98-03358.

The Respondent shall not alter the format or pricing structure of Attachment D unless expressly authorized by the District. Additional pricing information may be provided when necessary to clarify the Respondent's pricing but shall not replace the required Pricing Proposal.

Tab 8 – Additional Information (Optional): Respondents may provide additional information relevant to the District's consideration of the response that is not addressed elsewhere and that may assist the District in evaluating the Respondent's qualifications, approach, or ability to successfully perform the Work.

Tab 9 – Acceptance of District Terms and Conditions: The Respondent shall review and acknowledge acceptance of all terms and conditions contained in this solicitation. The documents comprising any resulting Agreement are identified in Section 6: District Terms and Conditions. Any exception, requested modification, or proposed alternative to a District term or condition must be clearly identified in this section of the response, including the specific provision at issue and the Respondent's proposed alternative language or resolution.

Respondents are expected to complete any necessary legal review of this solicitation prior to submitting a response. Terms or conditions not specifically identified as exceptions in the response will be considered accepted by the Respondent.

The District is under no obligation to accept any requested exception or modification and reserves the right to reject, accept, or negotiate proposed changes at its sole discretion. Exceptions to material solicitation requirements may affect the evaluation of a response or result in the response being deemed non-responsive.

Respondents shall not submit their own contract, standard terms and conditions, or other contractual documents in lieu of accepting the District's terms and conditions unless specifically requested by the District.

Tab 10 – Required Forms and Certifications: Complete, sign and include all required District forms and certifications provided with this solicitation. Failure to submit a required form or certification may result in the response being deemed non-responsive. Required forms include:

- Attachment A – Respondent Certification and Signature Page.
- Attachment B – Certification Regarding Debarment and Suspension.
- Attachment C – Criminal Records Check Certification Statement.

- Attachment D – Pricing Proposal.

Section 5: Evaluation of Responses

Responses will be reviewed and evaluated by the District in accordance with the criteria established in this solicitation. The purpose of the evaluation process is to identify the responsible Respondent or Respondents whose proposals are determined to be most advantageous to the District, considering price and other relevant factors.

Prior to substantive evaluation, responses may be reviewed for responsiveness, completeness, and compliance with the solicitation requirements. The District reserves the right to determine whether a response is responsive and whether any omission, deviation, or irregularity is material to the evaluation. Responsive proposals will be evaluated using the following criteria and maximum point values:

Evaluation Criterion	Maximum Points
Qualifications and Relevant Construction Experience	15
Project Team, Key Personnel, and Capacity	20
Project Approach and Understanding	20
Preliminary Construction Schedule and Ability to Achieve Required Completion	20
Relevant Past Performance and References	10
Pricing and Overall Value	15
Total	**100**

Qualifications and Relevant Construction Experience – 15 Points
Evaluation will consider the Respondent's qualifications, capabilities, and demonstrated experience successfully completing construction projects of similar size, scope, complexity, and schedule. Particular consideration may be given to K-12 school renovations, public-sector projects, occupied facilities, compressed summer construction programs, and experience relevant to the Project Package(s) proposed.

Project Team, Key Personnel, and Capacity – 20 Points
Evaluation will consider the qualifications, relevant experience, proposed responsibilities, availability, and demonstrated capabilities of the Respondent's proposed Project Manager(s), Superintendent(s), other key personnel, and major subcontractors. For Respondents proposing on multiple Project Packages, evaluations may also consider demonstrated organizational capacity, staffing, supervision, subcontractor resources, and ability to successfully perform concurrent construction at multiple locations.

Project Approach and Understanding – 20 Points
Evaluation will consider the Respondent's demonstrated understanding of the Work and the quality, feasibility, and effectiveness of its proposed approach. Consideration may include construction sequencing and phasing; site logistics; building access; coordination with the District, Design Professional, abatement contractor, and other separate contractors; management of long-lead materials; protection of existing and completed Work; quality control; final cleaning; and other factors relevant to successful performance.

Preliminary Construction Schedule and Ability to Achieve Required Completion – 20 Points
Evaluation will consider the quality, completeness, and feasibility of the Respondent's preliminary construction schedule and demonstrated ability to achieve the required Substantial Completion and Final Completion dates. Consideration may include preconstruction activities; procurement and delivery of major equipment and materials; anticipated long-lead items; mobilization; construction sequencing; abatement and separate-contractor coordination; staffing; inspections; testing and final cleaning; District turnover; punch-list activities; and identified schedule assumptions, dependencies, contingencies, and risks.

Relevant Past Performance and References – 10 Points
Evaluation will consider the Respondent's relevant past performance, successful completion of comparable projects, client satisfaction, and information obtained through reference checks or other documented performance history. The District reserves the right to contact any or all references identified in the response and may consider documented information regarding the Respondent's performance obtained from other sources available to the District.

Pricing and Overall Value – 15 Points
Evaluation will consider the completeness and reasonableness of the Respondent's proposed pricing and the overall value offered to the District. Price will be evaluated in relation to the Respondent's qualifications, experience, proposed project team, approach, construction schedule, and other factors relevant to successful performance of the Work. The District is not obligated to select the Respondent offering the lowest price.

Evaluation by Project Package
The District may evaluate and score Respondents separately for each Project Package proposed. A Respondent's evaluation or award for one Project Package does not require the District to assign the same evaluation or make an award to that Respondent for another Project Package. When a Respondent proposes on multiple Project Packages, the District may additionally evaluate the Respondent's demonstrated staffing, resources, subcontractor capacity, scheduling, coordination, and ability to successfully perform the proposed Work concurrently.

Initial Evaluation and Shortlisting
The District will conduct an initial evaluation of written proposals to identify Respondents to be shortlisted for interviews. Shortlisting may be conducted by Project Package and may be based upon the evaluation criteria established in this section and other requirements of the solicitation. Respondents not selected for an interview will receive no further consideration for the applicable Project Package unless the District determines that additional evaluation is necessary.

Interviews
Shortlisted Respondents will participate in interviews in accordance with the schedule established in Section 2: Communication and Timeline. Interviews are intended to provide the District an opportunity to further evaluate the Respondent's qualifications, proposed project team, capacity, understanding of the Work, proposed approach, preliminary construction schedule, and other matters relevant to the evaluation criteria established in this solicitation. The District may interview a Respondent concerning one, multiple, or all Project Packages for which the Respondent remains under consideration.

Clarifications and Additional Information

The District may request clarification or additional information from a Respondent when necessary to assist in the evaluation of a response. A request for clarification is not an opportunity for a Respondent to materially alter its proposal, pricing, or the substantive terms of its response unless expressly authorized by the District as part of the solicitation process. The District is not obligated to request clarification of an omission, ambiguity, inconsistency, or other deficiency in a response.

Final Evaluation

Following interviews, the Evaluation Committee will conduct its final evaluation of the shortlisted Respondents using the evaluation criteria and maximum point values established in this section. Final evaluation may consider information contained in the written proposal, information obtained through interviews and permitted clarifications, reference checks, and other information obtained or verified by the District in accordance with the solicitation.

Basis of Award

Award may be made by individual Project Package or combination of Project Packages to the responsible Respondent or Respondents whose proposals are determined to be most advantageous to the District based upon the evaluation criteria established in this solicitation. Award will not be based solely upon the lowest proposed price. Price is one of several factors considered in determining overall value.

In determining the award or combination of awards most advantageous to the District, the District may consider individual Project Package pricing, alternate pricing, permitted Multiple-Package Award Discounts, qualifications, project team and capacity, proposed schedules, coordination requirements, administrative efficiencies, risk, and other evaluation factors established in this solicitation. Any award is subject to required District approvals, including Board of Education approval when applicable, and successful completion of District contracting requirements.

The District may evaluate Package E – Fairview PK-8 and determine the most advantageous proposal without making an immediate award. Any subsequent award shall be subject to the conditions established for the contingent Project Package, continued validity of the applicable proposal, and all required District approvals.

The District reserves the right to reject any or all responses or Project Packages, in whole or in part; waive minor informalities or irregularities when determined appropriate; request clarification or additional information; make one or multiple awards; and cancel, postpone, or reissue the solicitation when determined to be in the District's best interest.

Section 6: District Terms and Conditions

By submitting a response to this solicitation, the Respondent acknowledges that it has reviewed and agrees to comply with the following District Terms and Conditions, except for any exceptions or requested modifications specifically identified in the Respondent's response in accordance with Section 4: Response Requirements. Terms and conditions not specifically identified as exceptions will be considered accepted and, upon award, shall become part of the Agreement between the District and the Contractor.

A. Solicitation and Contract Administration

1. **Respondent Responsibility:** Respondents are responsible for carefully reviewing all portions of this solicitation, including all requirements, specifications, terms, conditions, attachments, and addenda. If a Respondent discovers an ambiguity, discrepancy, omission, inconsistency, or other apparent error, the Respondent must submit a request for clarification in accordance with Section 2: Communication and Timeline prior to the established question deadline. Failure to request clarification shall not relieve the Contractor from complying with the requirements of the solicitation as interpreted by the District.
2. **Modification or Withdrawal of Response:** A Respondent may modify or withdraw its response prior to the solicitation submission deadline in accordance with the procedures established by the Rocky Mountain E-Purchasing System. Responses may not be modified or withdrawn after the submission deadline except as otherwise permitted by the District or applicable law.
3. **Addenda and Solicitation Modifications:** The District reserves the right to modify, clarify, correct, or amend this solicitation at any time prior to the submission deadline. Any such modification shall be issued in writing through the Rocky Mountain E-Purchasing System. Respondents are responsible for reviewing and acknowledging all addenda issued by the District. Oral statements, explanations, interpretations, or representations shall not modify the solicitation and shall not be relied upon by Respondents.
4. **Response as Binding Offer:** A response submitted in accordance with this solicitation constitutes an offer by the Respondent to provide the products and/or services described in the response in accordance with the requirements, terms, and conditions of this solicitation. The Respondent's authorized signature certifies that the individual signing the response has authority to bind the Respondent to its response.
5. **Acceptance of Response Content:** The contents of the Contractor's accepted response, including representations concerning products, services, pricing, qualifications, personnel, schedules, deliverables, and performance, may become contractual obligations upon award. Failure of the Contractor to honor the commitments contained in its accepted response may constitute a breach of the resulting Agreement.
6. **Response Validity:** Responses, including all proposed pricing, terms, and commitments, must remain valid and available for acceptance by the District for a minimum of ninety (90) days following the response submission deadline unless otherwise specified in the solicitation.
7. **District Reservation of Rights:** The District reserves the right, when determined to be in its best interest and to the extent permitted by applicable law and District policy, to reject any or all responses, in whole or in part; waive minor informalities or irregularities; request clarification or additional information; conduct discussions or negotiations; accept all or any portion of a response; cancel, postpone, or reissue the solicitation; withhold an award; and take any other action reasonably necessary to complete the solicitation process. Nothing contained in this solicitation obligates the District to make an award or purchase any products or services.
8. **Multiple or Partial Awards:** The District reserves the right to make a single award, multiple awards, or a partial award when determined to be in the best interest of the District and consistent with the requirements of the solicitation.
9. **Board of Education Approval:** Any award requiring approval of the Westminster Public Schools Board of Education shall be contingent upon such approval. No award, notice of intent to award, recommendation, or other communication shall obligate the District prior to receipt of all required approvals and issuance of an authorized Purchase Order or other applicable procurement document.
10. **Appeal of Award:** A Respondent may appeal an award recommendation by submitting a written request for reconsideration to the District's Logistics Coordinator within seventy-two (72) hours after notice of the recommendation of award, provided the appeal is submitted before the District finalizes the award. The

appeal must clearly identify the basis for the protest and provide all supporting information upon which the Respondent relies.

B. Contract Formation and Contract Documents

11. **Contract Formation:** Unless otherwise specified in the solicitation, the District shall establish an Agreement with the successful Respondent through issuance of an authorized Purchase Order or other applicable award document. Upon establishment of the Agreement, the successful Respondent shall be referred to as the Contractor. No notice of intent to award, award recommendation, verbal authorization, or other communication shall authorize the Contractor to begin Work or incur costs on behalf of the District. The Contractor shall not provide products or perform services until an authorized Purchase Order or other written authorization has been issued by the District. The District may make one or multiple awards under this solicitation. Each awarded Project Package may be established through a separate Agreement, Purchase Order, or other applicable Contract Document as determined by the District. Award of multiple Project Packages to the same Contractor shall not relieve the Contractor of its obligation to separately administer project-specific pricing, schedules, changes, payment documentation, and closeout requirements as directed by the District. The District may issue separate Notices to Proceed for individual Project Packages.
12. **Contract Documents:** The Agreement between Westminster Public Schools and the Contractor (the "Agreement") shall consist of the Contract Documents applicable to the Work, including the solicitation and all attachments thereto, including the Drawings, Technical Specifications, and WPS General Conditions of the Construction Agreement; all addenda issued by the District; the Contractor's accepted response; any written clarifications, exceptions, or negotiated modifications expressly accepted by the District; the District's Award Letter or other written award document; the District's Purchase Order; any Notice to Proceed issued by the District; required Performance and Payment Bonds; and any Change Orders or other authorized written modifications issued or executed in accordance with the Contract Documents. Only those portions of the Contractor's response, including any proposed exceptions, qualifications, or modifications, that are expressly accepted by the District shall become part of the Agreement. The Contract Documents are intended to be complementary and shall be interpreted together as constituting the complete Agreement for performance of the Work.
13. **Order of Precedence:** The Contract Documents are intended to be complementary and shall be interpreted together to give effect to all provisions applicable to the Work. In the event of a conflict, discrepancy, or inconsistency among the Contract Documents that cannot reasonably be reconciled, the following order of precedence shall apply, unless otherwise expressly stated in an Addendum, Change Order, or other authorized written modification:
    1. Change Orders and other authorized written modifications executed after establishment of the Agreement, with the most recently executed document controlling to the extent of the modification;
    2. Addenda issued by the District prior to the proposal submission deadline, with the most recently issued Addendum controlling to the extent of the modification;
    3. The District's solicitation, including the Scope of Work and project-specific District Terms and Conditions;
    4. WPS General Conditions of the Construction Agreement;
    5. Technical Specifications;
    6. Drawings;
    7. Written clarifications, exceptions, or negotiated modifications expressly accepted by the District;
    8. The District's Award Letter or other written award document;
    9. The Contractor's accepted response; and
    10. The District's Purchase Order.

    A Notice to Proceed and required Performance and Payment Bonds are Contract Documents but shall not modify or supersede the substantive requirements of the other Contract Documents unless expressly stated in an authorized written modification. The Purchase Order is issued for authorization, encumbrance, and administrative purposes and shall not modify or supersede the substantive requirements of the Agreement unless the Purchase Order expressly states otherwise. Nothing contained in the Contractor's response, including qualifications, assumptions, exclusions, proposed terms, or other exceptions, shall modify or supersede a District requirement unless expressly accepted in writing by an authorized District representative.
14. **Vendor Terms and Conditions:** Terms or conditions contained in a Respondent's quotation, proposal, invoice, order acknowledgement, website, electronic interface, click-through agreement, shrink-wrap agreement, or other document shall not modify or supplement the Agreement unless expressly accepted in writing by an authorized representative of the District. The District's acceptance of products or services,

payment of an invoice, or use of a Contractor's system shall not constitute acceptance of additional or conflicting vendor terms.

15. **Modification of Agreement:** No change to the Agreement shall be valid unless authorized in writing by the District. Modifications must remain within the scope and original intent of the solicitation unless otherwise permitted by applicable procurement requirements. The Contractor shall not perform additional or changed Work based upon verbal direction or other unauthorized communication. Costs incurred as a result of unauthorized changes shall be the responsibility of the Contractor and shall not be chargeable to the District.
16. **Assignment:** The Contractor shall not assign, transfer, or otherwise dispose of any interest in the Agreement, nor delegate its material obligations, without the prior written consent of the District.
17. **Subcontractors:** The Contractor shall remain fully responsible for all products and services provided under the Agreement, including Work performed by subcontractors. The Contractor shall ensure that all subcontractors comply with all applicable requirements, terms, and conditions of the Agreement. The Contractor shall not knowingly engage a subcontractor that is debarred, suspended, excluded, or otherwise ineligible to participate in an applicable federally funded transaction. The use of subcontractors shall not create any contractual relationship between a subcontractor and the District.

C. Performance and Contract Administration

18. **Contract Term and Renewal:** The term of the Agreement shall be as specified in the solicitation, Award Letter, Purchase Order, or other written award document issued by the District. When renewal options are provided, the District may exercise an available renewal option in writing prior to expiration of the current term, including through issuance of a Renewal Letter by an authorized District representative. Unless otherwise stated in the renewal, the terms, conditions, specifications, and pricing of the Agreement then in effect shall continue during the renewal period. Renewal shall not be automatic and shall be subject to satisfactory Contractor performance, continued District need, availability of funds, and any required District approvals. Notice of intent to renew shall not commit the District to a renewal.
19. **Contractor Responsibility and Key Personnel:** The Contractor shall be responsible for the successful performance of all requirements of the Agreement. Personnel identified as key personnel in the Contractor's accepted response are considered material to the Contractor's performance. The Contractor shall not replace key personnel without prior notice to and approval by the District. Any replacement shall possess qualifications and experience equal to or greater than those of the individual being replaced, unless otherwise approved by the District. The Contractor shall cooperate and coordinate with the District and any separate contractors performing work associated with the Project. Such coordination shall include scheduling, sequencing, access, and other activities necessary for the successful completion of the Work. Unless otherwise expressly provided in the Contract Documents, ordinary coordination with District-provided Work and separate contractors shall be included in the Contractor's Contract Sum. Any adjustments to Contract Time or Contract Sum shall be governed by the applicable provisions of the Contract Documents.
20. **Contractor Performance:** The District may periodically evaluate and document the Contractor's performance under the Agreement, including quality, timeliness, responsiveness, compliance with requirements, and other relevant performance factors. Documented Contractor performance may be considered by the District in administering the Agreement and, to the extent permitted by applicable procurement requirements, in evaluating the Contractor's responsibility or past performance in future solicitations.
21. **Independent Contractor:** The Contractor shall perform its obligations as an independent contractor and not as an employee, agent, partner, or joint venturer of the District. The Contractor shall be solely responsible for its employees and subcontractors and for all applicable wages, payroll taxes, employment taxes, workers' compensation, unemployment insurance, benefits, and other obligations arising from its employment relationships.
22. **Licenses and Permits:** Except as otherwise assigned in the Contract Documents, the Contractor shall obtain and maintain, at its own expense, all licenses, registrations, certifications, permits, and other governmental authorizations required to perform the Agreement and shall comply with all applicable laws, ordinances, codes, rules, and regulations.
23. **Inspection and Acceptance:** The District reserves the right to inspect and evaluate all products, services, Work, and deliverables provided under the Agreement. Products, services, or deliverables that fail to conform to the Agreement may be rejected. At the District's direction and at no additional cost to the District, the Contractor shall promptly repair, replace, correct, or re-perform nonconforming Work. Inspection, payment, or preliminary acceptance shall not relieve the Contractor of responsibility for latent defects, warranty obligations, or other requirements of the Agreement.

24. **Warranty:** The Contractor warrants that all Work furnished under the Agreement shall conform to the specifications and requirements of the Agreement and shall be free from defects in materials and workmanship. The Contractor shall promptly correct, repair, replace, or re-perform deficient or nonconforming products or services at no additional cost to the District. Any manufacturer's warranties applicable to products furnished under the Agreement shall be passed through to the District and shall be in addition to, and not in limitation of, any other warranty provided by the Contractor.
25. **Title to Goods:** The Contractor warrants that all goods, materials, and equipment furnished to the District shall be free and clear of liens, claims, security interests, and other encumbrances and that the Contractor has lawful authority to transfer title to the District.
26. **Time Is of the Essence:** When delivery, completion, implementation, or performance dates are established in the solicitation or Agreement, time is of the essence. Failure to meet required dates may constitute grounds for corrective action, cancellation, termination, or other remedies available to the District.
27. **Estimated Quantities/No Guaranteed Volume:** Any quantities identified in the solicitation are estimates provided for evaluation and planning purposes and do not constitute a guarantee of purchases. The District shall purchase only those quantities actually required during the term of the Agreement, subject to availability of appropriated funds.
28. **Non-Exclusive Agreement:** Unless expressly stated otherwise, any Agreement resulting from this solicitation shall be non-exclusive. The District reserves the right to obtain similar or identical products or services from other lawful sources, including State of Colorado contracts, cooperative purchasing agreements, or other procurement methods available to the District.

D. Pricing, Invoicing and Payment

29. **Contract Pricing:** Pricing accepted by the District shall include all labor, materials, equipment, supplies, travel, delivery, installation, administrative expenses, and other costs necessary to fully perform the Agreement unless a cost is expressly identified and accepted by the District as an additional charge. No additional fees, surcharges, or expenses may be charged without prior written authorization from the District.
30. **Taxes:** Westminster Public Schools is exempt from applicable State of Colorado and local sales and use taxes. No amount paid by the District shall include reimbursement for taxes from which the District is exempt. The District's Colorado tax exemption number is 98-03358.
31. **Purchase Order Required:** A valid Purchase Order must be issued prior to the Contractor providing products or performing services unless otherwise expressly authorized in writing by the District. The District shall have no obligation to pay for products or services furnished without appropriate authorization.
32. **Invoices:** Invoices must reference the applicable District Purchase Order number and provide sufficient detail to identify the products delivered, services performed, applicable dates, quantities, rates, and other information reasonably required by the District to verify the amount due. Invoices containing unauthorized charges or insufficient supporting information may be returned for correction. Invoices shall be submitted to the District's Accounts Payable Department by mail to the address identified on the Cover Page or by email to ap@wps.org. The District shall not be responsible for late fees, finance charges, interest, or similar charges unless expressly authorized by law or agreed to in writing by the District.
33. **Payment:** The District shall establish applicable billing procedures and shall pay the Contractor for goods delivered and accepted and/or services satisfactorily performed and accepted in accordance with the Agreement. Payment shall be based upon submission of a complete and accurate invoice in the form and manner prescribed by the District. The District's standard payment terms are Net 30. Payment shall be due within thirty (30) days following receipt of a complete and accurate invoice and acceptance of the applicable goods or services, whichever occurs later. Advance payment for goods or services is not permitted unless expressly authorized in writing by the District. Payments shall be made as earned, in whole or in part, from available funds encumbered for the applicable goods or services. The District's payment obligation shall be limited to amounts properly authorized and encumbered under the Agreement. No payment obligation shall arise for an amount subject to a good-faith dispute until the dispute is resolved. The District reserves the right to adjust or withhold payment when goods or services have not been delivered or performed in accordance with the Agreement, including when performance or progress does not reasonably correspond with the amount invoiced. Any incorrect or overpayment resulting from error, omission, misrepresentation, or other improper charge may be recovered by the District through deduction from subsequent amounts due to the Contractor or by other means available to the District. Payment shall not constitute final acceptance of defective or nonconforming goods or services and shall not waive any rights or remedies available to the District under the Agreement.

34. **Costs Incurred Prior to Award:** The District shall not be liable for any costs incurred by a Respondent in preparing or submitting a response, participating in the solicitation process, or performing work prior to issuance of an authorized Purchase Order or other applicable procurement document.

E. Termination, Funding and Delay

35. **Termination for Cause:** The District may terminate the Agreement, in whole or in part, for cause if the Contractor fails to perform any material requirement of the Agreement, fails to make satisfactory progress, fails to correct deficient performance, violates applicable law, or otherwise materially breaches the Agreement. The District shall provide written notice identifying the basis for termination and the effective date of termination. The District's rights under this provision are in addition to any other remedies available under the Agreement or applicable law. Following termination for cause, the District may obtain replacement products or services from another source, and the Contractor may be responsible for reasonable excess costs incurred by the District as a result of the Contractor's default, to the extent permitted by law.
36. **Termination for Convenience:** The District may terminate the Agreement, in whole or in part, without cause upon ten (10) days' written notice to the Contractor. In the event of termination for convenience, the Contractor shall be entitled to payment for conforming products delivered and accepted and services satisfactorily performed through the effective date of termination, including any authorized reimbursable expenses then due. Upon termination, the Contractor shall promptly deliver to the District all reports, data, deliverables, work product, District property, and other materials relating to the Agreement that have been prepared by or are in the possession of the Contractor. The Contractor shall refund any amounts prepaid by the District for products or services not provided as of the effective date of termination within forty-five (45) calendar days following termination, unless otherwise agreed to in writing by the District.
37. **Fund Availability/Non-Appropriation:** Any and all financial obligations of the District under the Agreement are contingent upon funds sufficient to meet such obligations being appropriated, budgeted, and otherwise made available, in accordance with C.R.S. § 22-1-135(2)(d)(I). If funds are not appropriated, budgeted, or otherwise made available, the Agreement shall terminate on the last day of the period for which funds were appropriated or otherwise made available. This provision shall not be construed to limit any other right of termination available to the District. Pursuant to C.R.S. § 22-44-115, any obligation requiring an expenditure contrary to C.R.S. § 22-44-115(1) shall be null and void, and no District funds shall be expended for such obligation.
38. **Force Majeure:** Neither party shall be liable for delay or failure to perform its obligations to the extent caused by circumstances beyond its reasonable control and without its fault or negligence, including acts of God, governmental actions, fire, flood, epidemic or pandemic, severe weather, labor disputes, freight embargoes, or similar events. The affected party shall promptly notify the other party and use commercially reasonable efforts to minimize the effect of the event and resume performance as soon as reasonably practicable.

F. Legal and Risk Requirements

39. **Compliance with Laws:** The Contractor shall comply with all applicable federal, state, and local laws, regulations, ordinances, codes, and rules in effect during performance of the Agreement, including requirements applicable to employment, nondiscrimination, privacy, safety, licensing, and performance of the contracted Work.
40. **Governing Law and Venue:** The Agreement shall be governed by and construed in accordance with the laws of the State of Colorado. Any legal action arising from or related to the Agreement shall be brought in a court of competent jurisdiction located in Adams County, Colorado, unless otherwise required by law.
41. **Governmental Immunity:** Nothing contained in the Agreement shall be construed or interpreted as a waiver, express or implied, of any immunity, right, benefit, protection, or other provision of the Colorado Governmental Immunity Act, C.R.S. §§ 24-10-101 et seq., or any other immunity or protection afforded to the District under applicable law.
42. **Prohibited Public School Contract Terms:** Notwithstanding anything to the contrary contained in the Contractor's response or any other document, no provision of the Agreement shall be interpreted or enforced to the extent it is prohibited by C.R.S. § 22-1-135 or other applicable law governing public school contracts. Prohibited provisions include, as applicable, terms requiring the District to indemnify or hold harmless another party; requiring the District to submit to binding arbitration or other binding extrajudicial dispute resolution; improperly limiting another party's liability for bodily injury, death, or property damage resulting from negligence or willful misconduct; or waiving, altering, or limiting statutory protections that may not lawfully be waived by the District.

43. **Indemnification:** To the fullest extent permitted by law, the Contractor shall indemnify and hold harmless Westminster Public Schools, its Board of Education, officers, employees, and agents from and against claims, damages, losses, liabilities, and expenses arising out of or resulting from the negligent acts or omissions, errors, willful misconduct, or breach of the Agreement by the Contractor or its employees, agents, subcontractors, or representatives. Nothing in this provision shall require the District to indemnify the Contractor or any other party.
44. **Insurance Requirements:** The Contractor shall obtain and maintain, at its own expense, and shall ensure that each subcontractor, as applicable, obtains and maintains, the insurance coverage required by this section throughout the term of the Agreement and until all products and services have been delivered, performed, and accepted by the District. All insurance carriers shall be authorized to conduct business in the State of Colorado.
    a. **Commercial General Liability:** Commercial General Liability insurance covering premises and operations, independent contractors, products and completed operations, contractual liability, personal injury, including death, and advertising liability, with minimum limits as follows:
        i. $1,000,000 bodily injury, per occurrence;
        ii. $1,000,000 bodily injury, aggregate;
        iii. $1,000,000 property damage, per occurrence; and
        iv. $1,000,000 property damage, aggregate.
    b. **Automobile Liability:** Automobile Liability insurance covering owned, hired, and non-owned automobiles, as applicable, with minimum limits as follows:
        i. $500,000 bodily injury, per occurrence; and
        ii. $100,000 property damage, per occurrence.
    c. **Workers' Compensation:** Workers' Compensation insurance as required by Colorado law covering all Contractor and subcontractor employees performing Work under the Agreement.
    d. **Cyber Liability (when applicable):** When the Contractor will access, process, transmit, maintain, or store District data or access District information systems, the Contractor shall maintain Cyber Liability insurance appropriate to the nature and extent of the associated risks, including coverage for privacy and data-security incidents, data breach response, cyber extortion, regulatory liability, and loss or unauthorized disclosure of confidential or personally identifiable information. Minimum coverage limits, when required, shall be as specified in the solicitation.
    e. **Professional Liability/Errors and Omissions (when applicable):** When the Contractor will provide professional, consulting, design, technology, financial, or other services for which professional liability coverage is appropriate, the Contractor shall maintain Professional Liability or Errors and Omissions insurance covering damages arising from errors, omissions, or negligent acts in the performance of such services. Minimum coverage limits, when required, shall be as specified in the solicitation. If coverage is written on a claims-made basis, the Contractor shall maintain such coverage for the period specified in the solicitation following completion of the services or expiration or termination of the Agreement.
    f. **Crime/Employee Dishonesty (when applicable):** When applicable to the Scope of Work, the Contractor shall maintain Commercial Crime or Employee Dishonesty insurance appropriate to the nature and extent of the associated risks. Minimum coverage limits, when required, shall be as specified in the solicitation.
    g. **Environmental/Pollution Liability (when applicable):** When the Scope of Work involves pollutants, hazardous materials, environmental remediation, or other environmental exposures, the Contractor shall maintain Environmental or Pollution Liability insurance appropriate to the work being performed. Minimum coverage limits, when required, shall be as specified in the solicitation.
    h. **Additional Insured:** Westminster Public Schools, its Board of Education, officers, employees, and agents shall be included as additional insureds on all applicable liability policies with respect to the Contractor's performance under the Agreement.
    i. **Primary and Noncontributory Coverage:** Coverage required of the Contractor and its subcontractors shall be primary and noncontributory with respect to applicable insurance or self-insurance maintained by the District.
    j. **Cancellation or Material Change:** The Contractor shall provide thirty (30) days' written notice to the District of cancellation, non-renewal, or material reduction in any insurance coverage required under the Agreement, to the extent such notice is available under the applicable policy.
    k. **Waiver of Subrogation:** To the extent permitted by law and available under the applicable policy, insurance maintained by the Contractor or its subcontractors in connection with the Agreement shall

provide a waiver of subrogation in favor of Westminster Public Schools, its Board of Education, officers, employees, and agents.

l. **Certificates of Insurance:** Prior to commencing work, and within ten (10) days following notification of award, the Contractor shall provide certificates of insurance or other evidence satisfactory to the District demonstrating compliance with the insurance requirements of the Agreement. The Contractor shall provide updated evidence of coverage upon request by the District. Acceptance of a certificate of insurance or other evidence of coverage by the District shall not constitute a waiver of any insurance requirement or relieve the Contractor of its obligation to maintain the required coverage.

m. **Modification of Insurance Requirements:** The District reserves the right to modify, waive, increase, or require additional insurance coverage or limits based upon the nature, scope, and risk of the products or services being provided. Any such requirements shall be identified in the solicitation or otherwise agreed to in writing by the District and the Contractor.

45. **No Waiver:** Failure of the District to enforce any provision of the Agreement shall not constitute a waiver of that provision or of the District's right to enforce the provision thereafter.
46. **Severability:** If any provision of the Agreement is determined to be invalid, illegal, or unenforceable, the remaining provisions shall remain in full force and effect to the extent the Agreement is capable of performance without the invalid provision.
47. **Survival:** Any provisions of the Agreement that by their nature are intended to survive completion, expiration, or termination of the Agreement shall remain in effect, including, as applicable, obligations relating to confidentiality, records and audit, indemnification, intellectual property, warranties, payment obligations, and other continuing rights or responsibilities.
48. **Legal Authority:** The Contractor represents and warrants that it possesses the legal authority to enter into the Agreement and that the individual accepting or executing the Agreement on behalf of the Contractor is authorized to bind the Contractor to its terms.
49. **No Third-Party Beneficiaries:** The Agreement is entered into solely for the benefit of the District and the Contractor. Nothing contained in the Agreement shall create or confer any contractual right, claim, or cause of action upon any third party.

G. Ethics, Records, Confidentiality and District Information

50. **Conflict of Interest:** The Respondent shall disclose any actual or potential conflict of interest known to the Respondent that may affect, or reasonably appear to affect, the Respondent's participation in the solicitation or performance of the Agreement. If awarded an Agreement, the Contractor shall promptly disclose to the District any actual or potential conflict of interest that arises during the term of the Agreement. The District reserves the right to determine whether a disclosed conflict may be adequately addressed or whether it affects the Respondent's eligibility for award or the Contractor's continued performance under the Agreement.
51. **Independent Pricing and Anti-Collusion:** By submitting a response, the Respondent certifies that its pricing and other material terms have been independently developed without collusion, consultation, communication, or agreement with any competing Respondent for the purpose of restricting competition. The Respondent shall not attempt to induce another person or firm to submit or refrain from submitting a response for the purpose of restricting competition.
52. **Gratuities, Kickbacks, and Improper Influence:** Respondents and Contractors shall not offer, provide, solicit, or accept any gratuity, kickback, gift, payment, or other thing of value intended to improperly influence the solicitation, evaluation, award, or administration of an Agreement. Violation of this provision may result in disqualification, cancellation of award, termination, or other remedies available to the District.
53. **Colorado Open Records Act/Confidential and Proprietary Information:** The Respondent acknowledges that Westminster Public Schools is a public entity subject to the Colorado Open Records Act ("CORA"), C.R.S. §§ 24-72-200.1 et seq., and that responses and records submitted to or maintained by the District may be subject to public disclosure. A Respondent claiming that specific information is confidential or proprietary must clearly identify the information and provide the legal basis supporting the requested restriction at the time the response is submitted. A Respondent may not designate its entire response as confidential or proprietary. The District shall determine whether requested confidentiality is permitted under applicable law and shall not be bound by a Respondent's designation when disclosure is required by law.
54. **Confidentiality of District Information:** The Contractor shall protect confidential information obtained from or on behalf of the District and shall not disclose, distribute, sell, use, or retain such information except as necessary to perform the Agreement or as expressly authorized by the District or required by law. The Contractor shall ensure that its employees, agents, and subcontractors comply with the same requirements.

55. **Data Privacy and Security:** When performance of the Agreement requires access to student data, employee data, personally identifiable information, confidential information, District systems, or other protected information, the Contractor shall comply with all applicable federal and state privacy and security requirements and all applicable District data-security requirements. The Contractor may be required to execute a District Data Protection Agreement or other applicable privacy or security agreement prior to receiving access to protected information.
56. **Ownership of Work Product:** Unless otherwise specified in the solicitation, reports, studies, analyses, drawings, specifications, data, documents, and other deliverables specifically created for the District under the Agreement shall become the property of the District upon payment. The Contractor shall retain ownership of its pre-existing intellectual property, proprietary methodologies, software, tools, processes, trademarks, patents, and other materials developed independently of the Agreement. To the extent such pre-existing materials are incorporated into a District-owned deliverable, the Contractor grants the District a perpetual, nonexclusive license to use such materials as necessary to use the deliverable for its intended purpose.
57. **Records and Audit:** The Contractor shall maintain records sufficient to document its performance and all amounts charged to the District and shall retain such records for the period required by applicable law or the solicitation. Upon reasonable notice, the District or its authorized representatives may inspect records directly related to the Contractor's performance and charges under the Agreement.
58. **Publicity and Use of District Name:** The Contractor shall not issue press releases, public announcements, advertising, endorsements, or promotional materials identifying Westminster Public Schools or using the District's name, trademarks, logos, or other identifying marks without prior written authorization from the District.

H. Personnel and District Property

59. **Workers Without Authorization:** The Contractor certifies, warrants, and agrees that it does not knowingly employ or contract with a worker without authorization who will perform Work under the Agreement and shall confirm the employment eligibility of all employees newly hired for employment in the United States to perform Work under the Agreement. The Contractor shall not knowingly employ or contract with a worker without authorization to perform Work under the Agreement or enter into a contract with a subcontractor that fails to certify to the Contractor that the subcontractor will not knowingly employ or contract with a worker without authorization to perform Work under the Agreement.
60. **Background Checks:** When Contractor employees will work or are reasonably likely to work on District property, the Contractor shall be solely responsible, at its own expense, for conducting all required criminal background checks for such employees in accordance with applicable law and District requirements. The District will not conduct or independently review criminal background checks on Contractor employees. The Contractor shall complete and submit the District's Criminal Records Check Certification Statement**,** certifying that the required background checks have been completed and that the Contractor has determined its employees are eligible to perform Work on District property in accordance with the requirements stated in the certification. The Contractor shall remain responsible for compliance with all applicable federal, state, and local privacy and confidentiality requirements governing employee background checks and shall maintain appropriate records supporting its certification. The District may require the Contractor to provide an updated certification or conduct updated background checks during the term of the Agreement when reasonably necessary. Failure to conduct required background checks, submit the required certification, or otherwise comply with this provision may result in removal of affected personnel from District property, suspension of Work, termination of the Agreement, or other remedies available to the District.
61. **Conduct on District Property:** Contractor personnel shall comply with applicable District policies, procedures, security requirements, and standards of conduct while on District property. The Contractor shall be responsible for the conduct of its employees, agents, and subcontractors and shall promptly remove from District property any individual when reasonably requested by the District.
62. **District Property and Site Access:** The Contractor shall use District property and facilities solely for purposes necessary to perform the Agreement and shall take reasonable precautions to prevent damage, disruption, unauthorized access, or interference with District operations. The Contractor shall be responsible for damage to District property caused by the negligent or wrongful acts or omissions of the Contractor, its employees, agents, or subcontractors.
63. **Hazardous Materials/Safety Data Sheets:** The Contractor shall comply with all applicable requirements concerning hazardous materials and shall provide current Safety Data Sheets for hazardous chemicals or materials furnished to or used on District property, when applicable.

64. **Accessibility:** Products and services that include information and communication technology, digital content, software, websites, applications, or other electronic resources shall comply with applicable federal and State of Colorado accessibility requirements. The Contractor shall provide documentation of accessibility compliance upon request by the District and shall promptly correct any identified accessibility deficiencies at no additional cost to the District.
65. **Sustainability:** When applicable to the products or services being procured, the Contractor is encouraged to provide environmentally preferable products and services that minimize resource consumption and adverse impacts on human health and the environment. The Contractor shall identify applicable environmental certifications or standards associated with proposed products when requested by the District.

I. Cooperative and Administrative Provisions

66. **Cooperative Purchasing:** Westminster Public Schools is a member of the Cooperative Educational Purchasing Council (CEPC). The geography of CEPC extends along the Front Range of the Rocky Mountains from the Fort Collins/Greeley area in the north to Colorado Springs in the south. CEPC's membership includes public purchasing departments representing approximately seventy percent (70%) of the K-12 public school enrollment in the State of Colorado. When permitted by applicable law and the terms of this solicitation, other eligible public agencies and governmental entities may, at their discretion, utilize any contract or award resulting from this solicitation, subject to the Contractor's ability to provide the products or services and reasonable allowances for geographic service areas, delivery requirements, quantities, or other material factors affecting pricing or performance. Any public agency or governmental entity electing to utilize the resulting Agreement shall establish its own contractual relationship with the Contractor, issue its own Purchase Orders, receive its own invoices, make its own payments, and provide its own tax-exemption documentation, as applicable. Westminster Public Schools shall not be a party to, nor shall it have any responsibility or liability for, any agreement, purchase, payment, performance, or other obligation between the Contractor and another participating public agency or governmental entity.
67. **Notices:** Formal notices required under the Agreement shall be provided in writing to the representatives designated by the District and Contractor. Notice shall be effective upon confirmed delivery by an authorized electronic method, personal delivery, or recognized delivery service, unless otherwise specified in the Agreement.
68. **Entire Agreement:** The Agreement, consisting of the documents identified in the Contract Documents provision and interpreted in accordance with the Order of Precedence, constitutes the entire agreement between the parties concerning its subject matter. No oral statement, representation, promise, or prior communication shall modify the Agreement.
69. **Section Headings:** Section headings are provided for convenience and organization only and shall not affect the interpretation of the Agreement.

J. Construction, Installation, Repair, and Facility-Related Work

The following additional terms and conditions apply when the Scope of Work includes construction, renovation, alteration, installation, replacement, repair, maintenance, or other work performed on or affecting District buildings, facilities, grounds, building systems, or permanently installed equipment, whether or not the solicitation is otherwise identified or classified as a construction project. These provisions are in addition to all other applicable terms and conditions of this solicitation. The District may require additional project-specific construction agreements, general conditions, supplementary conditions, drawings, specifications, or other Contract Documents when appropriate based upon the nature, scope, value, or risk of the Work.

70. **Performance and Payment Bonds – When Applicable:** For construction contracts exceeding fifty thousand dollars ($50,000), the Contractor shall furnish a Performance Bond and a Payment (Labor and Material) Bond, each in the amount of one hundred percent (100%) of the contract price, with good and sufficient surety acceptable to the District. Required bonds shall be delivered to the District within ten (10) days following receipt of the final award document and prior to commencement of any Work. The Performance Bond shall remain in effect for a period of one (1) year following completion and acceptance of the Work, unless a longer period is required by the solicitation or applicable law. Failure to furnish the required bonds within the specified timeframe may be considered a failure to fulfill the requirements of the award and may result in cancellation of the award and any other remedies available to the District.
71. **Permits, Licenses, and Inspections:** Unless otherwise specified in the solicitation, the Contractor shall obtain and pay for all permits, licenses, inspections, approvals, and other governmental authorizations necessary for the proper performance and completion of the Work. The Contractor shall comply with all applicable federal, state, and local laws, codes, ordinances, rules, regulations, and requirements of authorities having jurisdiction over the Work and shall timely coordinate and obtain all required inspections. If the

Contractor becomes aware of any conflict between the requirements of the Agreement and applicable law, code, or regulation, the Contractor shall promptly notify the District in writing and shall not proceed with the affected Work until receiving written direction from the District.

72. **Site Examination and Existing Conditions:** The Respondent is responsible for familiarizing itself with the location and conditions under which the Work will be performed, including reasonably observable site conditions, access limitations, existing facilities and building systems, delivery and storage conditions, and other circumstances that may reasonably affect the cost, schedule, or performance of the Work. Submission of a response constitutes acknowledgment that the Respondent has considered such conditions in preparing its response. The Contractor shall promptly notify the District in writing of concealed, unknown, or materially differing conditions discovered during performance and shall not proceed with affected Work when doing so could result in additional cost, delay, damage, or unsafe conditions without written direction from the District.
73. **Protection of Persons, Property, and Existing Facilities:** The Contractor shall take all necessary and reasonable precautions to protect District students, employees, visitors, and other persons; the Work; District buildings, grounds, equipment, utilities, and other property; and adjacent property from injury, damage, loss, or disruption resulting from performance of the Work. The Contractor shall be responsible for damage caused by the acts or omissions of the Contractor, its employees, agents, subcontractors, or suppliers and shall promptly repair, restore, or replace damaged property at no additional cost to the District. When Work is performed in or adjacent to an occupied District facility, the Contractor shall coordinate its activities with the District and take appropriate measures to minimize disruption and maintain safe access and operation of the facility.
74. **Safety:** The Contractor shall be responsible for initiating, maintaining, and supervising all safety precautions and programs necessary for performance of the Work and shall comply with all applicable occupational health and safety laws, regulations, codes, and requirements, including applicable Occupational Safety and Health Administration (OSHA) requirements. The Contractor shall be solely responsible for the construction means, methods, techniques, sequences, procedures, and safety precautions associated with its Work and the Work of its subcontractors. The Contractor shall promptly notify the District of any condition that presents an immediate threat to persons or property and shall take appropriate action to prevent injury, loss, or damage.
75. **Changes in the Work:** The District may authorize changes to the Work within the general scope of the Agreement, including additions, deletions, substitutions, or other revisions. Any adjustment to the contract price, Scope of Work, or time for performance must be authorized in writing by the District. The Contractor shall not perform additional or changed Work based solely upon verbal direction or other unauthorized communication. Work performed without required written authorization shall be at the Contractor's risk and expense and shall not entitle the Contractor to additional compensation or an extension of time. Nothing in this provision prevents the Contractor from taking reasonable action necessary in an emergency to protect persons or property, provided the Contractor promptly notifies the District of the emergency and the action taken.
76. **Claims for Additional Cost or Time:** If the Contractor believes that any direction, condition, change, delay, or other circumstance entitles it to additional compensation or an extension of time, the Contractor shall provide written notice to the District promptly after becoming aware of the circumstance and before proceeding with any affected additional or changed Work, except when immediate action is necessary to protect persons or property. The notice shall describe the basis of the claim and the anticipated effect on cost and schedule and shall include supporting documentation reasonably requested by the District. No adjustment to the contract price or time for performance shall be effective unless authorized in writing by the District. Failure to provide timely notice may constitute a waiver of the Contractor's claim to the extent the District is prejudiced by the failure to receive such notice.
77. **Project Schedule and Progress:** The Contractor shall perform the Work in accordance with the schedule, milestones, delivery dates, installation dates, and completion dates established in the Agreement. When requested by the District, the Contractor shall provide a detailed project schedule identifying significant activities, milestones, dependencies, deliveries, and anticipated completion dates and shall periodically update the schedule to accurately reflect actual progress. If actual progress falls materially behind the required schedule, the District may require the Contractor to provide a written recovery plan identifying the measures the Contractor will take to restore the Work to the required schedule. Unless the delay is attributable to a cause for which the Contractor is entitled to an authorized adjustment under the Agreement, costs associated with recovering the schedule shall be borne by the Contractor.
78. **Time Is of the Essence:** Time is of the essence with respect to all dates, milestones, delivery requirements, installation dates, and completion dates established in the Agreement. The Contractor shall diligently

prosecute the Work and provide sufficient personnel, supervision, materials, equipment, and other resources necessary to meet the required schedule. Failure to meet a required completion date, except to the extent an extension has been authorized in writing by the District, may constitute a material breach of the Agreement and subject the Contractor to the remedies provided in the Agreement.

79. **Delays and Extensions of Time:** The Contractor shall promptly notify the District in writing of any event or circumstance that the Contractor reasonably believes will delay performance of the Work. The notice shall identify the cause of the delay, the anticipated duration, the activities or milestones affected, and the measures being taken to mitigate the delay. An extension of time may be granted for delays caused by circumstances beyond the Contractor's reasonable control and without its fault or negligence, or for delays caused or expressly authorized by the District. Any extension shall be limited to the period reasonably attributable to the qualifying delay. No extension of time shall be effective unless approved in writing by the District. The Contractor shall use reasonable efforts to mitigate all delays and minimize their effect on the Project.
80. **Liquidated Damages – When Specified:** When liquidated damages are identified in the solicitation, Scope of Work, Award Letter, or other Contract Document, completion of the Work within the time specified in the Agreement shall be considered a material requirement of the Agreement. The Contractor agrees that failure to achieve Final Completion by the date required, including any extension of time authorized in writing by the District, shall constitute a breach of the Agreement and shall entitle the District to assess liquidated damages in the amount of $1,000.00 per calendar day for each day that elapses between the required Final Completion date and the date Final Completion is achieved. The parties acknowledge that delay may cause the District to incur damages that are difficult to ascertain with certainty and that the amount specified as liquidated damages represents a reasonable estimate of the District's anticipated damages and is not intended as a penalty. The District may deduct liquidated damages from amounts otherwise due to the Contractor. Liquidated damages shall not be assessed for periods of delay for which the Contractor has received an authorized extension of time.
81. **Correction of Defective or Nonconforming Work:** The District may reject Work that is defective, deficient, incomplete, or otherwise fails to conform to the requirements of the Agreement. Upon notice from the District, the Contractor shall promptly correct, repair, remove, replace, or re-perform rejected or nonconforming Work at no additional cost to the District, including any related Work damaged or affected by the correction. Inspection, payment, use, or acceptance of Work by the District shall not relieve the Contractor of responsibility for latent defects, warranty obligations, or other requirements of the Agreement.
82. **District's Right to Correct or Complete Work:** If the Contractor fails to correct defective or nonconforming Work, fails to diligently prosecute the Work, or otherwise fails to perform a material requirement of the Agreement, the District may, after providing reasonable written notice and an opportunity to cure when appropriate, take such action as reasonably necessary to correct the deficiency or complete the Work. The District may perform such Work itself or obtain the products or services from another source and may deduct the reasonable costs incurred from amounts then or thereafter due to the Contractor. If amounts due to the Contractor are insufficient to cover such costs, the Contractor shall be responsible for the difference. Exercise of this right shall not waive or limit any other right or remedy available to the District.
83. **Warranty of Work:** The Contractor warrants that all Work performed under the Agreement shall be of good quality, performed in a professional and workmanlike manner, conform to the requirements of the Agreement, and be free from defects in materials and workmanship. Unless a longer warranty period is specified in the solicitation or provided by the manufacturer, the Contractor shall warrant the Work for a period of one (1) year following final completion and acceptance by the District. The Contractor shall promptly correct defects or deficiencies identified during the warranty period at no additional cost to the District. Manufacturer warranties applicable to equipment or materials furnished under the Agreement shall be transferred or otherwise made available to the District and shall be in addition to the Contractor's warranty obligations.
84. **Completion and Final Acceptance:** The Contractor shall notify the District when the Work is complete and ready for final inspection. Completion shall not be considered achieved until all required Work, testing, inspections, corrections, documentation, training, closeout materials, and other requirements of the Agreement have been satisfactorily completed, unless otherwise accepted by the District in writing. Final acceptance shall occur only upon written acceptance by the District or other action expressly identified in the Agreement as constituting final acceptance. Payment, occupancy, use, inspection, or operation of any portion of the Work shall not constitute acceptance of defective or nonconforming Work or waive any warranty or other obligation of the Contractor.
85. **Additional Insurance Requirements – When Applicable:** In addition to the insurance requirements otherwise stated in this solicitation, the District may require additional insurance coverage or higher limits appropriate to the nature, value, and risk of the Work, including Builder's Risk, Installation Floater,

Umbrella/Excess Liability, Professional Liability, Environmental/ Pollution Liability, or other applicable coverage. Any additional insurance requirements shall be identified in the solicitation, Scope of Work, or other Contract Documents and shall be maintained for the period specified therein.

86. **Liens, Claims, and Payment of Subcontractors and Suppliers:** The Contractor shall promptly pay all subcontractors, suppliers, laborers, and other persons or entities entitled to payment for labor, materials, equipment, or services furnished in connection with the Work in accordance with applicable law and the terms of the Agreement. The Contractor shall be responsible for resolving claims arising from its failure or the failure of its subcontractors to make required payments and shall protect the District and District property from liens, claims, or other encumbrances arising from the Contractor's performance. The District may require reasonable documentation demonstrating payment of subcontractors and suppliers and may withhold amounts otherwise due when reasonably necessary to protect the District from unpaid claims, to the extent permitted by law.

Attachment A – Respondent Certification and Signature Page

This form must be completed, signed, and included with the response.

RFP No. _____

Project Title: _____

Respondent Information:

Legal Business Name: _____

Business Address: _____

City, State, Zip: _____

Website: _____

Primary Contact Name: _____

Title: _____

Telephone: _____

Email: _____

Certification:

By signing below, the undersigned, on behalf of the Respondent, certifies and acknowledges that:

1. The undersigned is authorized to submit the response and to bind the Respondent to the representations, commitments, pricing, and other information contained therein.
2. The Respondent has carefully reviewed the solicitation, including the Scope of Work, District Terms and Conditions, attachments, and all addenda issued by the District, and has submitted its response based upon those requirements.
3. The information contained in the Respondent's response is true, complete, and accurate to the best of the undersigned's knowledge and belief.
4. The response constitutes an offer by the Respondent to provide the products and/or services described therein in accordance with the requirements, terms, and conditions of this solicitation.
5. Except for any exceptions or requested modifications specifically identified in Tab 9 – Acceptance of District Terms and Conditions, the Respondent accepts and agrees to comply with the requirements, terms, and conditions of this solicitation.
6. The Respondent acknowledges that, upon award, the documents identified in Section 6 – District Terms and Conditions shall collectively constitute the Agreement between the District and the Contractor.
7. The Respondent understands that Westminster Public Schools is under no obligation to accept the response or make an award and that no Work may be performed and no costs incurred on behalf of the District until authorized in accordance with the solicitation.

Authorized Signature:

Legal Business Name: _____

Authorized Representative: _____

Title: _____

Signature: _____

Date: _____

Attachment B – Certification Regarding Debarment and Suspension

This form must be completed, signed, and included with the response.

The Respondent certifies, to the best of its knowledge and belief, that the Respondent and its principals:

1. Are not presently debarred, suspended, proposed for debarment, declared ineligible, voluntarily excluded, or otherwise excluded from participation in covered transactions by any federal department or agency;
2. Have not, within the three (3) years preceding submission of this response, been convicted of or had a civil judgment rendered against them for:
    a. Fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public federal, state, or local transaction or contract;
    b. Violation of federal or state antitrust laws;
    c. Embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violation of federal criminal tax laws, or receiving stolen property; or
    d. Other offenses involving fraud, dishonesty, or a lack of business integrity;
3. Are not presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, any of the offenses described above; and
4. Have not, within the three (3) years preceding submission of this response, had one or more public transactions or contracts terminated for cause or default.

The Respondent further certifies that it is not presently listed as an excluded party in the System for Award Management (SAM.gov).

If the Respondent is unable to certify to any statement above, the Respondent shall attach a written explanation identifying the applicable statement and providing sufficient information for the District to evaluate the circumstances. Disclosure of such information shall not automatically disqualify the Respondent; however, the District reserves the right to consider the information in determining the Respondent's responsibility and eligibility for award. The Respondent shall promptly notify the District in writing if any certification made herein becomes inaccurate or no longer remains true due to changed circumstances at any time during the solicitation process or, if awarded an Agreement, during the term of the Agreement.

Certification:

By signing below, the undersigned certifies that they are authorized to make this certification on behalf of the Respondent and that the information provided above is true and accurate to the best of their knowledge and belief.

Authorized Signature:

Legal Business Name: _____

Authorized Representative: _____

Title: _____

Signature: _____

Date: _____

Attachment C – Criminal Records Check Certification Statement

This form must be completed, signed, and included with the response.

Westminster Public Schools requires Contractors whose employees will work or are reasonably likely to work on District property to conduct criminal background checks in accordance with District requirements. The Contractor is responsible for conducting and evaluating such background checks and for maintaining the confidentiality of information obtained through that process. The District does not conduct or independently review individual criminal background checks on Contractor employees.

Certification:

The undersigned, on behalf of the Respondent, certifies and agrees that, if awarded an Agreement with Westminster Public Schools:

1. The Contractor shall conduct, at its own expense, an appropriate criminal background check for each employee who will work or is reasonably likely to work on District property.
2. The Contractor shall comply with all applicable federal, state, and local laws and requirements governing criminal background checks and the privacy and confidentiality of information obtained through such checks.
3. The Contractor shall not assign to Work on District property any employee who has been convicted of, pled guilty or nolo contendere, or received a deferred sentence or deferred prosecution for a felony, or a misdemeanor involving unlawful sexual behavior or unlawful behavior involving children.
4. The Contractor shall maintain records sufficient to demonstrate compliance with these requirements but shall not provide individual criminal-history records to the District unless specifically required by law or requested by the District and legally permissible.
5. Upon reasonable request by the District, the Contractor shall conduct an updated criminal background check for any employee working or reasonably likely to work on District property and shall provide an updated certification of compliance. The District may restrict or suspend an individual's access to District property pending completion of an updated background check or certification.
6. The Contractor shall ensure that subcontractors and their employees performing Work on District property comply with the same requirements.
7. Failure to conduct required background checks, provide required certification, or otherwise comply with these requirements may result in removal of affected personnel from District property, suspension of Work, termination of the Agreement, or other remedies available to the District.

By signing below, the undersigned certifies that they are authorized to make this certification on behalf of the Respondent and that the Respondent understands and agrees to comply with the requirements stated above if awarded an Agreement with the District.

Authorized Signature:

Legal Business Name: _____

Authorized Representative: _____

Title: _____

Signature: _____

Date: _____

Attachment D – Pricing Proposal

Respondents shall complete pricing for each Project Package for which they are submitting a proposal. Respondents are not required to submit pricing for every Project Package. All Base Proposal and Alternate pricing shall be firm and shall include all labor, materials, equipment, supervision, overhead, profit, bonds, insurance, permits, transportation, temporary facilities, cleaning, protection of Work, coordination, and other costs necessary to fully perform the applicable Work unless expressly identified otherwise in the Contract Documents.

District-provided regulated-material abatement shall not be included in the Respondent's pricing; however, required coordination and sequencing with District-provided abatement shall be included. Respondents shall not combine Project Package pricing or condition individual Project Package pricing upon receipt of another award except through the optional Multiple-Package Award Discount described below.

Respondent Name: _____

Package A – International School at Harris Park Base Proposal – Complete Work required by the solicitation and applicable Contract Documents:	$
Package B – Sherrelwood Elementary Base Proposal – Complete Work required by the solicitation and applicable Contract Documents:	$
Package C – Early Learning Center at Gregory Hill Base Proposal – Complete Work required by the solicitation and applicable Contract Documents:	$
Package D – Hodgkins Leadership Academy Base Proposal – Flooring Replacement and Associated Work as described in Section 3.5:	$
Package E – Fairview PK-8 Base Proposal – Complete Work required by the solicitation and applicable Contract Documents:	$
Package F – Tennyson Knolls Preparatory School Base Proposal – Remaining Contractor-performed improvements described in Section 3.7 and the applicable Contract Documents, excluding previously completed or separately contracted Work:	$

Optional Multiple-Package Award Discount

A Respondent submitting proposals for more than one Project Package may identify a fixed-dollar discount applicable if the District awards a specified combination of Project Packages to the Respondent:

Project Packages to which discount applies: _____

Deductive Amount: $_____

Additional combinations may be identified on an attached schedule using the same format. Multiple-Package Award Discounts are optional. Failure to provide a discount will not affect the responsiveness or evaluation of a proposal. Individual Project Package pricing must remain valid regardless of whether the Respondent receives an award for any other Project Package.

The District shall determine whether and how an offered Multiple-Package Award Discount affects the overall value of a proposed combination of awards.